STANDARD OPERATING PROCEDURE			I-5500
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **04/16/24**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE INVESTIGATIONS: NARCOTICS K-9	RESOURCES			
SUBJECT NARCOTICS K-9 OPERATIONS	CROSS REFERENCE P-6600 CRITERIA FOR K-9 UNIT ACTIVATION			

I. Purpose:

The purpose of this policy is to establish the guidelines for the operations of the narcotics K-9.

II. Policy:

The Sarpy County Sheriff's Office has established a narcotics K-9 to expand and supplement service to the community. The operations of the narcotics K-9 and Sheriff's Office personnel involved in activities with the narcotics K-9 shall be governed by the following procedures.

III. Definitions:

A. K-9: Trained Law Enforcement Canine.

B. K-9 HANDLER: One deputy trained to function with and control a K-9.

C. K-9 TEAM: One deputy trained and functioning as a handler and one trained and functioning K-9.

D. Narcotics K-9 PATROL UNIT: An unmarked or undercover Sarpy County Sheriff's Office vehicle specially equipped to transport a K-9 team.

IV. Procedure:

A. Narcotics K-9 Team Operational Guidelines:

1. Narcotics K-9 handlers shall maintain control of their assigned K-9s at all times, on and off duty.

2. The narcotics K-9 team(s) shall utilize a designated, specifically equipped vehicle.

a) Suspects, employees, and visitors may be transported in the passenger compartment of the narcotics K-9 patrol unit if the handler believes doing so will not disrupt normal activities or disturb the K-9.

3. When requested to respond to an incident or traffic stop, the narcotics K-9 handler shall evaluate the situation to determine if the use of the K-9 is feasible. If feasible the narcotics K-9 may respond when requested, however deployment of the narcotics K-9 relies on the decision of the narcotics K-9 handler.

a) If a disagreement arises between the requesting officer or supervisor in charge of the incident and the narcotics K-9 handler regarding the deployment of the narcotics K-9, the requesting officer or supervisor shall defer to the judgment of the narcotics K-9 handler regarding the deployment of the K-9.

b) The narcotics unit supervisor shall be notified of any disagreements that arise regarding the deployment of a narcotics K-9.

B. **Sheriff's Office Personnel Responsibilities:** Those Sheriff's Office personnel that have contact with a narcotics K-9 team shall adhere to the following guidelines:

1. Under no circumstances shall any employee strike a K-9 handler or roughhouse with a K-9 handler while a K-9 is present.

2. Employees shall not strike or discipline a K-9.

3. Employees shall not tease or harass a K-9 (inside or outside of the narcotics K-9 patrol unit) unless engaged in training and authorized by and in the presence of the K-9 handler.

4. Employees shall not touch or pet a K-9 without permission from and in the presence of the K-9 handler.

5. Except in an emergency situation or when given prior approval of the K-9 handler, employees shall not give commands to a K-9.

6. Except in an emergency situation or when given prior approval of the K-9 handler, employees shall not enter the narcotics K-9 patrol unit or remove a K-9 from a narcotics K-9 patrol unit or any other area of confinement.

7. When the K-9 is deployed during an incident, employees shall obey directions of the K-9 handler with regards to working in conjunction with the K-9 team

C. **Injury to K-9 Handler:** In the event a K-9 handler is injured in the performance of duty, the following procedures shall be followed:

1. The supervisor or deputies on the scene should make every effort to safely secure the K-9 in the K-9 patrol unit.

2. Care should be taken during the separation from the K-9 and the K-9 handler. Securing the K-9 is essential for the protection of those assisting the injured K-9 handler.

3. If possible, the initial attempt to secure the K-9 should be by a person familiar with the K-9.

4. If an initial attempt to remove and secure the K-9 is unsuccessful, the on-scene supervisor shall determine the need to utilize force options (e.g., Taser, aerosol subject restraint, etc.) to remove and secure the K-9 to provide emergency medical attention to the K-9 handler. The on-duty watch commander or ADC shall be notified immediately under such circumstances.

5. The Nebraska Humane Society may also be contacted to assist with securing the K-9, if time permits.

D. **Area of Operation:**

1. The narcotics K-9 is not limited to the geographical borders of Sarpy County. The narcotics K-9 may operate outside the borders of Sarpy County when requested by another metro law enforcement agency to assist or as part of its daily role as a member of the Omaha Metro Drug Task Force (OMDTF). While conducting activity outside of Sarpy County the narcotics K-9 should follow normal daily activity procedures for the Sarpy County Sheriff's Office Narcotics Unit and OMDTF.

E. **Searches for Drugs- K-9 Handler Responsibilities:** Without consent, probable cause or a search warrant, K-9 searches for drugs are authorized only when there is no reasonable expectation of privacy in the item(s) and/or areas to be searched.

1. Public Facilities and Places:

a) K-9s may not be used to sniff luggage or related personal items in the physical possession (i.e., control of or close proximity to) an individual in a public facility or place unless:

(1) There is reasonable suspicion that the personal possession contains illegal drugs or evidence of a crime, and

(2) The time required to conduct the sniff is limited in duration.

b) K-9s may be used to sniff luggage or other personal effects of an individual on either a random or selective basis if the items are not in the possession of the owner (e.g., on conveyor belts, in the possession of baggage handlers, etc.).

c) Whenever possible, the facility manager of a public facility should be provided advanced notification when a K-9 search is planned. The search should be conducted without interference or annoyance to the public or interruption of facility operations.

d) K-9 searches of the exterior of residences, either individual dwellings or the common areas of multiple dwellings, are only permissible with a search warrant or consent of the property owner.

e) K-9 searches in schools should be limited to situations where there is reasonable suspicion to believe that illegal drugs are being sold, possessed, and/or consumed on the premises. Whenever possible, the principal or designated authority shall be provided advanced notification when a K-9 search is planned. Searches in schools shall be limited to inanimate objects where there is no reasonable expectation of privacy (e.g., lockers).

2. Search Warrants: When a K-9 is used to search for drugs pursuant to a search warrant, the following procedures shall be adhered to:

a) All persons, except those directed by the K-9 handler, shall be removed from the location prior to the K-9 being deployed for a search.

b) Any pets or other distractions or hazards shall be removed, as directed by the K-9 handler.

c) Doors and windows shall be closed and all air circulating devices (e.g., air conditioning, furnace, fans, etc.) shall be turned off.

3. Motor Vehicles:

a) K-9 drug sniffs of motor vehicles may be conducted when:

(1) There is reasonable suspicion to believe that the operator or passengers are in possession of illegal narcotics, or

(2) The K-9 sniff is limited to the exterior of the vehicle, or

(3) The operator provides consent for a search of the vehicle.

b) K-9 handlers are encouraged to conduct K-9 sniffs of the exterior of all legally stopped vehicles.